

Nepal Quality (Certification Mark) Act, 1980

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Nepal Quality (Certification Mark) Act, 2037

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Amending Acts

1. Nepal Quality (Certification Mark) (First Amendment) Act, 2084 2084.7.10
2. Administration of Justice Act, 2048 2048.2.16
3. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.07
4. Some Nepal Acts Amendment Act, 2072 2072.11.13

Act No. 10 of the year 2037

An Act Made to Provide for Quality Determination and Certification Mark

Preamble: Whereas it is expedient to determine the quality of any substance for the benefit of the general public and to make provision for the use of a quality certification mark on such substances,

Therefore, His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act on the advice and with the consent of the National Panchayat. 1. Short Title and Commencement: (1) This Act may be called the "Nepal Quality (Certification Mark) Act, 2037."

(2) This Act shall come into force on such date as the Government of Nepal may, by notification in the Nepal Gazette, appoint. This Act is appointed to come into force from the date 2038.8.1. (Nepal Gazette dated 2038.8.1)

2. Definitions: Unless the subject or context otherwise requires, in this Act,?

(a) "Council" means the Nepal Quality Council constituted under Section 3.

(b) "Office" means the Nepal Quality Office established under Section 5.

(c) "Quality" means the Nepal Quality determined or recognized by the Council.

(d) "Substance" means natural, semi-natural, artificial, manufactured, processed, semi-processed, or unprocessed goods or articles.

(e) "Process" means any process from the production or manufacture of a substance up to its consumption.

(f) "Certification Mark" means the quality certification mark.

(g) "License" means a license to use the certification mark.

(h) "Inspector" means an inspector appointed or designated under Section 12.

(i) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3. Constitution of Council: Amended by the First Amendment. The Government of Nepal may, by notification in the Nepal Gazette, constitute a Nepal Quality Council to determine quality in relation to any substance, process or service and to make provision for the use of the certification mark on such substance. The full name of this Council in English shall be Nepal Council for Standards, and the abbreviated name shall be NCS. 4.

Functions, Duties and Powers of the Council: (1) Except as otherwise provided elsewhere in this Act, the functions, duties and powers of the Council shall be as follows: (a) Amended by the First Amendment. To determine quality in relation to any substance, process or service, to amend or cancel the determined quality, (b) To recognize quality prescribed by any domestic or foreign body, (c) To grant recognition to government or non-government laboratories for quality determination or testing, or to suspend or cancel such recognition, (d) To prescribe the format of the quality certificate and the shape, type and format of the certification mark, (e) To prescribe or alter the fee for the quality certificate and certification mark and the fee for providing services. (2) The Council may constitute committees or sub-committees including members of the Council or other persons as necessary for the conduct of its work. 5. Establishment of Nepal Quality Office: (1) For the implementation of the objectives of this Act, the Government of Nepal shall establish a Nepal Quality Office. The full name of this Office in English shall be Nepal Bureau of Standards, and the abbreviated name shall be NBS. (2) Except as otherwise provided elsewhere in this Act, the functions, duties and powers of the Nepal Quality Office shall be as follows: (a) To grant licenses or quality certificates for the use of the certification mark after quality has been determined by the Council, (b) Amended by the First Amendment. To inspect or cause to be inspected and provide necessary technical advice and guidance in relation to enhancing the quality of any substance, process or service, (c) To appoint or designate inspectors, (d) To renew, suspend or cancel licenses, (e) To require a bond or undertaking prescribing necessary conditions when granting a license, (f) To perform the administrative work of the Council. 6. Council May Delegate Powers: The Council may delegate all or any of its functions, duties and powers to any member of the Council, or to a committee or sub-committee constituted by the Council, or to the Office, or to any officer of the Office. 7. Who May Use the Certification Mark: Any producer, manufacturer, distributor or service provider desiring to affix the certification mark in relation to any substance or process must obtain a license under this Act. 7A.

Publicity May Be Done with Approval: Added by the First Amendment. (1) If any person wishes to publicize that any substance conforms to the Nepal Quality, such person must obtain approval from the Office. (2) A person desiring to obtain approval under Sub-section (1) shall submit an application to the Office. (3) Upon receipt of any application under Sub-section (2), the Office may, after making necessary inquiry, grant approval to allow such publicity. 7B. Certifying Quality of a Specific Quantity of Substance: Added by the First Amendment. (1) If any person wishes to have the quality of a specific quantity of substance certified, such person shall submit an application to the Office for that purpose. (2) Upon receipt of an application under Sub-section (1), the Office may, after making necessary inquiry, certify whether such specific quantity of substance is of quality or not. 8. Prohibition on Improper Use of Certification Mark: (1) No person shall use the certification mark in relation to any substance without obtaining a license. No person shall use any mark that may cause confusion with the shape or type of the certification mark. (2) Even a person who has obtained a license shall not use the certification mark in relation to substances that do not conform to the determined quality, nor use any mark that may cause confusion with its shape or type. 9. Prohibition on Use of Name Similar to Council or Office: No person shall use any name that may cause confusion with the full or abbreviated name of the Council or Office. 10. Quality of Substances Related to Public Health and Safety

May Be Prescribed: (1) In relation to any substance or process other than medicines and foodstuffs whose standards are determined under the Drugs Act, 2035 and the Food Act, 2023, the Government of Nepal may, for the health and safety of the general public, by notification in the Nepal Gazette, prescribe that the producer, manufacturer, distributor or service provider of such substance or process shall mandatorily adopt the quality determined by the Council from a date specified in the same notification. (2) In relation to a substance or process prescribed under Sub-section (1), the concerned producer, manufacturer, distributor or service provider must obtain a license or quality certificate under this Act. 11.

Quality of Substances for Export-Import May Be Prescribed: (1) In relation to substances other than medicines whose standards are determined under the Drugs Act, 2035, imported into Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. within, the Government of Nepal may, for the health and safety of the general public, by notification in the Nepal Gazette, prescribe that such substance shall be of the quality prescribed by the Council. (2) In relation to any substance exported from Nepal, for the promotion of international trade, the Government of Nepal may, if it deems necessary, by notification in the Nepal Gazette, prescribe that such substance shall be of the quality prescribed by the Council. 12. Inspectors: (1) The Office may appoint or designate such number of inspectors as may be necessary to inspect or cause to be inspected the quality of any substance or process. (2) The functions, duties and powers of an inspector appointed or designated under Sub-section (1) shall be as follows: (a) To investigate whether, in relation to any substance or process bearing a certification mark, a license has been obtained or not and whether the work is done in accordance with the conditions of such license, (b) To investigate whether, in relation to any substance or process bearing a quality certificate, the work is done in accordance with the conditions of such certificate, (c) To inspect the production of any substance on which a certification mark or quality certificate is used, or any process relating to such substance, (d) To take samples for inspection or testing of any substance on which a certification mark or quality certificate is used, and of raw or semi-finished materials etc. related to such substance, in whatever state. 13.

Penalties: (1) Any person acting in contravention of Section 8 shall be liable to a fine of up to three thousand rupees or imprisonment for up to six months or both. (2) Any person acting in contravention of Section 9 shall be liable to a fine of up to one thousand five hundred rupees or imprisonment for up to three months or both. (3) If any substance or process prescribed under Section 10 does not have the determined quality, or if any person puts such substance or process to use without affixing the certification mark, such person shall be liable to a fine of up to five thousand rupees or imprisonment for up to one year or both. (4) If any person exports or imports, or attempts to export or import, or abets the export or import of any substance prescribed under Section 11 without the determined quality, such person shall be liable to a fine of up to three thousand rupees or imprisonment for up to six months or both. (5) Any person acting in contravention of any other section of this Act shall be liable to a fine of up to one thousand rupees or imprisonment for up to one month or both. (6) Substances on which a quality certificate or certification mark is used, or which are exported or imported, in contravention of this Act shall be confiscated. 14. Government to be Plaintiff: The plaintiff in a case under this Act shall be the Government of Nepal. 15. Jurisdiction for Hearing Cases: The Chief District Officer shall have the authority to conduct initial proceedings and adjudicate cases under this Act. 16. Investigation and Filing of Cases: (1) The investigation of an offence punishable under this Act shall be conducted by an Inspector, and upon completion of such investigation, the Inspector shall file the case before the officer having jurisdiction to hear the case. (2) While investigating and filing a case under Sub-section (1), the Inspector may seek the opinion of the government attorney. 17. Appeal: A decision made by the officer under Section 15 may be appealed Amended by Some Nepal Acts Amendment Act, 2072. to the District Court. 18. Power to Give Directions: The Government of Nepal may, as necessary, give directions to the

Council or the Office. If such directions are given, the Council or the Office shall comply with such directions.
19.

Power to Make Rules: (1) The Government of Nepal may make rules for the implementation of the objectives of this Act. (2) Without prejudice to the generality of the power conferred by Sub-section (1), rules may be made in particular on the following matters: (a) Determining and publishing quality, (b) Granting licenses or quality certificates and renewing licenses, (c) Appointing or designating inspectors and making provisions regarding the procedure to be followed by inspectors during inspection, (d) Making provisions regarding the bond or undertaking to be taken from a person obtaining a license or quality certificate, (e) Making provisions regarding meetings of the Council and other procedures related thereto, (f) Making suitable provisions regarding administrative and financial matters. 20. Validity of Acts and Proceedings: Any quality determined, or any license or quality certificate granted, by the Nepal Quality Determination Committee constituted under the Nepal Quality Determination (Formation) Order, 2034 before the commencement of this Act shall be deemed to have been determined or granted under this Act.